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Matter LSH-2026-MVA-770412
Prepared in anticipation of litigation

# MASTER CASE SUMMARY

John Doe v. Robert Smith · attorney only

**From** Atty. Elijah Thorne, Lead Counsel
**To** File; Case Manager (working copy — do not forward)
**Date** February 10, 2026
**Re** Collision of February 6, 2026 · client John Doe (front-seat passenger) · initial assessment and plan

## 1. Liability

Strong on present information. Kevin Alvarez stopped eastbound on Maple Hollow Rd at the all-way stop and proceeded; Robert Smith, northbound on Birch Ave in a 2017 Chevrolet Silverado, did not stop and struck the Escape's front passenger door, pushing it into the parked Civic owned by the client's mother, Margaret Doe. Three supports, each to be secured now:

- **Citation.** Riverton PD report RPD-26-018842: the client reports Smith was cited for failure to stop. Order the report; confirm the citation and its disposition.
- **Independent witness.** A neighbor at the corner saw it. Identify her from the report and get a signed statement while memory is fresh.
- **Video.** Margaret Doe's doorbell camera at 2214 Maple Hollow Rd faces the intersection. Preserve the original clip and the device; copy with a logged chain of custody. This is our best evidence and the most fragile.

Anticipate a comparative-fault argument that the Escape entered out of turn, and a seatbelt argument against a passenger. The witness, the video and the EMS run report (restraint) answer both.

## 2. Coverage stack and order of operations

| # | Layer | Carrier · claim | Limit | Status |
|---|---|---|---|---|
| 1 | BI — Robert Smith (third-party) | Keystone Mutual · KM-26-440871 · Dana Whitfield | $10,000 | Reported verbally on the set-up call; not confirmed in writing — Keystone will not send its declarations page without a written request and signed authorizations |
| 2 | Host UM — Kevin Alvarez's policy (first-party) | Harbor Point · HP-26-7741 · Marcus Bell | $20,000 | Reported on set-up call; dec page requested. MedPay $5,000 reported |
| 3 | Relative UM — Margaret Doe's policy (first-party) | Cardinal State Mutual · CS-26-20355 · adjuster not yet assigned | $10,000 | Reported; dec page requested |
| | **Potential stack** | | **$40,000** | **Preliminary until each limit is confirmed in writing** |

**Order.** BI first. Host UM opens only once BI is exhausted (paid or tendered at limits); Relative UM stacks behind Host UM as excess. A UM demand before the BI tender is premature. **No BI settlement and no release of any kind is signed without the written consent of both UM carriers** — releasing BI without consent can forfeit the stack. Any release we accept must be limited to Robert Smith and Keystone. The Civic is Margaret Doe's: its PD claim is hers, not the client's, and outside the stack. If the firm helps her, it is a separate PD-only engagement with her; nothing on the PD side may release bodily injury.

**To confirm with each UM carrier:** add-on (excess) versus reduced-by UM; any MedPay non-duplication or offset; any reimbursement right on MedPay; consent-to-settle and arbitration provisions.

### 3. Passenger status — why it matters

The client was the front-seat passenger in a vehicle he does not own. That status is what reaches both UM layers: Host UM as an occupant of the Escape, and Relative UM as a resident relative of Margaret Doe occupying a non-owned vehicle. The client owns no vehicle and has no auto policy of his own. The parked Civic is Margaret's, insured by Bluewater (BWA-209-66184); she recalls signing something about UM in 2024 — get the dec page and any signed rejection form, because UM on her Bluewater policy would add a resident-relative layer. A file that lists him as a driver points at the wrong coverage. **Every intake field, letter and pleading must show him as a passenger.**

### 4. Health plan and payer order

Peach State Health Plan, member PSH-55017742, group GRP-41208, through Northgate Distribution (effective 02/01/2026). Expect a reimbursement claim on any accident-related payments. Notify the plan now and request its plan documents. Determine whether the plan is **fully insured or self-funded (ERISA)**: that decides whether state law governs any reduction — my call once we have the documents. Payer order while the claim is open: MedPay (Harbor Point) → Peach State → letters of protection for providers outside the plan.

### 5. Principal risk — delayed treatment

As of today the client has had **no medical treatment** (four days post-collision). He owns no car (his mother's Civic was towed; the Escape is damaged), is taking OTC ibuprofen and lidocaine patches, and is unsure whether his new plan is active. Every further day without care is a day an adjuster will call a gap and argue causation. Mitigating facts to document now: neck complaint to EMS at the scene; call-outs from work this week; the pharmacy receipt; his texts about the pain. Get him seen this week — MedPay is available — and arrange transportation. If a gap develops, we need the reasons in writing and a treating physician's causation opinion before any demand.

### 6. Statute of limitations and internal dates

| Item | Date | Note |
|---|---|---|
| SOL (two-year limitation assumed for this file; confirm the governing statute) | 02/06/2028 (Sun) | Docketed. Do not rely on a weekend roll-forward |
| Internal hard date | 02/04/2028 (Fri) | Last business day before the SOL |
| Internal filing cutoff (90 days before) | 11/05/2027 (Fri) | 11/06/2027 is a Saturday — moved to the earlier business day |

### 7. Fee

33⅓% of gross recovery before suit; 40% of gross once suit is filed (retainer of 02/09/2026). Costs from the client's share after the fee. Any decision to file is mine and will be discussed with the client, including the fee tier.

### 8. Case plan — priorities

1. Treatment this week; MedPay claim opened with Harbor Point; transportation solved.
2. Letters of representation to Keystone (BI and PD), Harbor Point and Cardinal State; written limits request to Keystone with authorizations.
3. Preserve and copy the doorbell video; order the police report and EMS run report; witness statement.
4. Peach State notice and plan documents; Bluewater dec page and UM form (Margaret's policy).
5. PD: not the client's claim. The Civic and its rental are Margaret Doe's; note it, and she decides whether to pursue Keystone herself or sign a separate PD-only engagement.
6. Northgate wage and attendance records from 02/09/2026.
7. CMS record complete and checked against the source documents before the first letter goes out.

All strategy, demands, filings, lien compromises and settlement authority come through me. Nothing in this memorandum goes into a demand package, mediation binder or exhibit set.

E. Thorne

Atty. Elijah Thorne, Lead Counsel, LSH Law Group